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**UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA
SAN FRANCISCO DIVISION**

JUDITH MARZULLO, an individual,
Plaintiff,

vs.

MBS CARRIER, INC., a California
Corporation; SUKHDEV SINGH,
BARJINDER SINGH and MOHINDER
SINGH d/b/a MBS TRUCKING; and
JASMIT SINGH-RANDHAWA, an
individual, and TEJBIR PADDA, an
individual.

Defendants.

NO. C 07-4695 BZ

FIRST AMENDED COMPLAINT FOR:

- 1. NEGLIGENCE**
- 2. PERMISSIVE USE OF VEHICLE;**
- 3. NEGLIGENT ENTRUSTMENT OF VEHICLE**

DEMAND FOR JURY TRIAL

Plaintiff Judith Marzullo, for her Complaint against Defendants MBS Carrier, Inc.; Sukhdev Singh, Barjinder Singh and Mohinder Singh d/b/a MBS Trucking; Jasmit Singh-Randhawa, and Tejbir Padda hereby alleges as follows:

PARTIES

1. Plaintiff Judith Marzullo (hereinafter "Plaintiff" or "Marzullo"), an individual, is a citizen of the State of Arizona.

2. Upon information and belief, Defendants Sukhdev Singh, Barjinder Singh and Mohinder Singh (hereinafter collectively "MBS Trucking") are citizens of the State of California doing business as MBS Trucking. Upon information and belief, MBS Trucking, which is based

1 in Tracy, California, is an interstate motor carrier registered with the Federal Motor Carrier
2 Safety Administration.

3 3. Defendant MBS Carrier, Inc. (hereinafter "MBS Carrier"), is a California
4 corporation based in Tracy, California. Upon information and belief, MBS Carrier is the parent
5 company of MBS Trucking and/or is in an agency relationship with MBS Trucking.

6 4. Upon information and belief, Tejbir Padda, an individual, is a citizen of the State
7 of California.

8 5. Upon information and belief, Jasmit Singh-Randhawa, an individual, is a citizen
9 of the State of California. At all times relevant hereto, Jasmit Singh-Randhawa was working
10 within the scope of his employment for MBS Trucking and/or MBS Carrier and/or Tejbir Padda.

11 JURISDICTION

12 6. Subject matter jurisdiction is grounded in 28 U.S.C. § 1332 and is proper
13 thereunder. As stated above in Paragraphs 1-4, Complete diversity exists between the parties
14 hereto. The amount in controversy exceeds \$75,000, exclusive of interest, costs, and fees.

15 7. Personal jurisdiction exists in this Court because all of the Defendants are citizens
16 of the State of California.

17 8. Venue is grounded in 28 U.S.C. § 1391(a)(2), and is proper thereunder, because
18 a substantial part of the events or omissions upon which Plaintiff's claims are based occurred
19 within this District.

20 INTRADISTRICT ASSIGNMENT

21 9. This action is properly assigned to the San Francisco Division of this Court
22 pursuant to Civil Local Rule 3-2(c) because the events giving rise to Plaintiff's claims occurred
23 in San Mateo County.

24 FACTUAL BACKGROUND

25 10. In October 2006, Judith Marzullo, a 65-year-old woman in good health, was
26 vacationing in California.

27 11. On October 9, 2006, Marzullo decided to take a drive from Belmont, California,
28 where she was staying during her vacation, to Half Moon Bay, California.

12. Marzullo was driving her vehicle Westbound on State Route 92, West of Interstate 280, when she encountered heavy traffic stopped just before a curve in the two-lane highway.

13. As Marzullo was waiting in the stopped Westbound traffic, she suddenly heard a roaring noise and then saw an Eastbound truck (hereinafter "the Truck") pulling two trailers hurtling around the sharp corner in the road at an unsafe rate speed.

14. Marzullo felt an immediate rush of fear as she witnessed the massive oncoming Truck plough through the curve in the road. Seconds later, the rear trailer of the Truck, which was driven by Defendant Jasmit Singh-Randhawa, overturned as it rounded the curve. The overturned rear trailer crossed into the Westbound lane as it slid down the decline of the roadway at a high rate of speed.

15. The rear trailer crashed head-on into Marzullo's vehicle.

16. The force of the impact caused Marzullo's vehicle to spin around counterclockwise before it came to a stop, facing East.

17. The crash resulted in serious injuries to Marzullo, who was wearing her seatbelt during the crash.

18. Marzullo was transported by ambulance to Sequoia Hospital in Redwood City, California, where she was treated and hospitalized for four days before being released on October 12, 2006.

19. Upon information and belief, Defendant Jasmit Singh-Randhawa was acting in the course and scope of his employment with MBS Trucking and/or MBS Carrier and/or Tejbir Padda when the crash occurred.

20. Upon information and belief, Defendants MBS Trucking and/or MBS Carrier, or alternatively Tejbir Padda, owned the Truck that Defendant Jasmit Singh-Randhawa was driving when the collision occurred.

21. At this time, Marzullo is still receiving medical care and treatment for her injuries.

22. Plaintiff Marzullo suffered severe physical and psychological injuries, including but not limited to past and future medical expenses, physical and mental pain and suffering, loss of income, and other associated damages.

FIRST CAUSE OF ACTION

NEGLIGENCE

(Against All Defendants)

23. Plaintiff repeats and incorporates by reference all allegations contained herein.

24. Defendant Jasmit Singh-Randhawa had a duty to use reasonable care to prevent harm to others. As a driver, Defendant Jasmit Singh-Randhawa's duty of reasonable care included, but was not limited to, the duty to drive at a reasonable speed, and to drive in such a manner that did not create a danger to others.

25. Defendant Jasmit Singh-Randhawa breached his duty of reasonable care by driving the Truck, which was pulling two trailers, at an unreasonably high rate of speed as he approached a sharp curve on State Route 92. Defendant Jasmit Singh-Randhawa further breached his duty of reasonable care by failing to exercise due caution under the circumstances and by driving in a manner that created an unreasonable risk of harm to others.

26. As a result of Defendant Jasmit Singh-Randhawa breaching his duties as alleged above, Plaintiff Marzullo suffered severe physical and psychological injuries, including but not limited to past and future medical expenses, physical and mental pain and suffering, loss of income, and other associated damages.

27. Defendant Jasmit Singh-Randhawa's breaches of duty were the cause in fact and proximate cause of Marzullo's injuries. But for Jasmit Singh-Randhawa's failure to use reasonable care, failure to drive at a reasonable speed, and failure to use due caution to prevent dangers to other drivers, among other breaches of duty, Marzullo would not have suffered the severe physical and psychological injuries alleged above.

28. Marzullo has suffered damages as a result of the above-alleged breaches, including but not limited to severe physical and psychological injuries, including but not limited to past and future medical expenses, physical and mental pain and suffering, loss of income, and other associated damages.

29. Defendants MBS Trucking, MBS Carrier and Tejbir Padda are liable for the negligence of Defendant Jasmit Singh-Randhawa through the doctrine of *respondeat superior*.

SECOND CAUSE OF ACTION

PERMISSIVE USE OF VEHICLE (California Civil Code § 17150)

(Against Defendants MBS Trucking MBS Carrier and Tejbir Padda)

30. Plaintiff repeats and incorporates by reference all allegations contained herein.

31. As alleged above, Defendant Jasmit Singh-Randhawa was negligent in operating the Truck, causing severe injuries to Marzullo.

32. Upon information and belief, Defendants MBS Trucking and/or MBS Carrier, or alternatively Tejbir Padda, owned the Truck at the time of the crash in which Marzullo was injured.

33. Defendant Jasmit Singh-Randhawa was using the Truck with permission from Defendants MBS Trucking and/or MBS Carrier, or alternatively Tejbir Padda, when his negligence caused the crash and resultant injuries to Marzullo.

THIRD CAUSE OF ACTION

NEGLIGENT ENTRUSTMENT OF MOTOR VEHICLE

(Against Defendants MBS Trucking, MBS Carrier and Tejbir Padda)

34. Plaintiff repeats and incorporates by reference all allegations contained herein.

35. As alleged above, Defendant Jasmit Singh-Randhawa was negligent in operating the Truck, causing severe injuries to Marzullo.

36. Upon information and belief, Defendants MBS Trucking and/or MBS Carrier, or alternatively Tejbir Padda, owned the Truck at the time of the crash in which Marzullo was injured.

37. Defendants MBS Trucking and/or MBS Carrier, or alternatively Tejbir Padda, knew, or should have known, that Defendant Jasmit Singh-Randhawa was incompetent or unfit to drive the vehicle.

38. Defendant Jasmit Singh-Randhawa was using the Truck with permission from Defendants MBS Trucking and/or MBS Carrier, or alternatively Tejbir Padda, when his negligence caused the crash and resultant injuries to Marzullo.

/S/ Todd M. Hardy
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